

**CV-26-000462 CASAREZ, ENRIQUE vs WESTERN DENTAL SERVICES INC
- a) Defendants' Demurrer to Plaintiff's Verified Complaint - OVERRULED,
in part, SUSTAINED, in part; b) Defendants' Motion to Strike Portions of
Plaintiff's Verified Complaint - GRANTED, without prejudice.**

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) As a preliminary matter, the Court notes Defendant's failure to file his mandatory Demurrer pleading and to state the grounds on which the demurrer is brought, permitting the Court to disregard same. (Code of Civil Procedure § 430.60; See also Rutter Guide

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CV-26-000462 - CASAREZ, ENRIQUE vs WESTERN DENTAL SERVICES INC - a) Defendants' Demurrer to Plaintiff's Verified Complaint - OVERRULED, in part, SUSTAINED, in part; b) Defendants' Motion to Strike Portions of Plaintiff's Verified Complaint - GRANTED, without prejudice.

a) As a preliminary matter, the Court notes Defendant's failure to file his mandatory Demurrer pleading and to state the grounds on which the demurrer is brought, permitting the Court to disregard same. (Code of Civil Procedure § 430.60; See also Rutter Guide - A. Demurrers, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A) and CA ST CIVIL RULES Rule 3.1112 and Rule 3.1320). However, the Court exercises its discretion to consider same. (McAllister v. Cnty. of Monterey, (2007)147 Cal. App. 4th 253). Nevertheless, Counsel is cautioned to observe the above listed procedural requirements in connection with future submissions.

Where a doctor obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained, there is a clear case of battery. (Piedra v. Dugan, (2004) 123 Cal. App. 4th 1483, In the medical context, battery theory should be reserved for those circumstances when a doctor performs an operation to which the patient has not consented. (Piedra v. Dugan, supra). Plaintiff's Complaint alleges that he consented to a tooth extraction, but that Defendant used excessive force for said extraction. This does not meet the lack of consent requirement for this cause of action. However, Plaintiff alleges consent to a bone graft procedure procured by fraud. The allegations as to fraud are contained in Plaintiff's Third Cause of Action for Fraud and Deceit which Defendant did not demur to, justifying the conclusion that said Third Cause of Action is well pled.

Fraud vitiates consent or renders the agreement procured by the fraud voidable. (Rosenthal v. Great W. Fin. Sec. Corp., (1996) 14 Cal. 4th 394). Elimination of Plaintiff's consent to the bone graft procedure based on the alleged fraud renders Defendant's touching for said procedure harmful or offensive and meets the elements for the battery cause of action. Notably, Courts may affirm the sustaining of a demurrer only if the complaint fails to state a cause of action under any possible legal theory. (Sheehan v. San Francisco 49ers, Ltd., (2009)45 Cal. 4th 992).

Civil Procedure Code section 354's inclusion of "An act of torture, as described in Section 206 of the Penal Code" in the list of the causes of action with a ten year statute of limitations indicates a separate category of tort action warranting special treatment and demonstrates legislative recognition of some overlap between battery and torture under circumstances where said conduct would also amount to torture. (Civ. Proc. Code § 354.8; Penal Code § 206). Plaintiff, however, fails to allege great bodily injury from the bone graft procedure or from the two molars allegedly removed without clinical justification that would meet the requirements of Penal Code § 206).

Accordingly, Defendant's demurrer to Plaintiff's Third Cause of Action is overruled. Defendant's demurrer to Plaintiff's Fourth Causes of Action is sustained with leave to amend.

Defendant's Request for Judicial Notice is granted. The Court takes judicial notice of Plaintiff's Verified Complaint filed in this matter to the exclusion of the truth of disputed factual assertions or hearsay statements contained therein. (Evidence Code § 452)

b) Plaintiff's claims in the Complaint herein clearly arise out of "the professional negligence" of Defendants as "healthcare provider[s] to Plaintiff. (Civ. Proc. Code § 425.13). Whenever an injured party seeks punitive damages for an injury that is directly related to the professional services provided by a health care provider acting in its capacity as such, the statute governing punitive damages for claims arising out of the professional negligence of a health care provider applies (Divino Plastic Surgery, Inc. v. Superior Court (2022) 293 Cal.Rptr.3d 47, modified on denial of rehearing; Cooper v. Superior Court (1997) 56 Cal.App.4th 744; United W. Med. Centers v. Superior Ct., (1996 42 Cal. App. 4th 500.), as modified (Feb. 26, 1996). Defendants only had the opportunity to handle Plaintiff's teeth because Plaintiff came to Defendants for medical treatment.

Accordingly dental treatment is covered by the provisions of Civ. Proc. Code § 425.13. (Cooper v. Superior Court (1997) 56 Cal.App.4th 744; United W. Med. Centers v. Superior Ct., (1996 42 Cal. App. 4th 500.), as modified (Feb. 26, 1996).

Furthermore, identifying a cause of action as an intentional tort as opposed to negligence does not itself remove the claim from the requirements of the statute governing punitive damages for claims arising out of the professional negligence of a health care provider. (Divino Plastic Surgery, Inc. v. Superior Court, supra; Country Villa Claremont Healthcare Center, Inc. v. Superior Court (2004), 120 Cal.App.4th 426; Cooper v Superior Court, supra). Therefore, Plaintiff's medical battery claim would also be subject to the provisions of Civ. Proc. Code § 425.13.

The Court notes Plaintiff's reliance on Bommareddy v. Superior Ct., noting that it has been disapproved of by Cent. Pathology Serv. Med. Clinic, Inc. v. Superior Ct. and that a long line of cases since Bonmareddy, including the aforementioned, align with the Central Pathology decision.(Bommareddy v. Superior Ct., (1990), 222 Cal. App. 3d 1017, disapproved of by Cent. Pathology Serv. Med. Clinic, Inc. v. Superior Ct., (1992). 3 Cal. 4th 181).

Plaintiff has not obtained leave under Code of Civil Procedure § 425.13 to plead punitive damages in this action arising out of the professional services of a health care provider. Accordingly, Defendant's motion is granted. (Civ. Proc. Code §§ 435 and 436). All punitive-damages allegations identified in this motion and the punitive-damages prayer are hereby stricken without prejudice.

Plaintiff may file and serve a motion under Code of Civil Procedure § 425.13 within 30 days of service of this Order.

The Court does not reach the ultimate sufficiency of the punitive allegations under Civil Code § 3294 at this time.

Defendant's Request for Judicial Notice is granted. The Court takes judicial notice of Plaintiff's Verified Complaint filed in this matter to the exclusion of the truth of disputed factual assertions or hearsay statements contained therein. (Evidence Code § 452)

Defendant shall submit a Proposed Order within five court days that complies with this ruling.